

25STCP01950 25STCP01950

County: los-angeles

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Case Number: 25STCP01950 Hearing Date: June 23, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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MARVA

LINDSEY,

Petitioner(s),

vs.

CIVIL SERVICE COMMISSION OF THE COUNTY OF LOS

ANGELES,

Respondent(s).

Case No.:

25STCP01950

Hearing Date:

June 23, 2026

[TENTATIVE] RULING ON PETITION

FOR WRIT OF MANDATE

Petitioner Marva Lindsey ("Petitioner") petitions for a writ of administrative mandate against respondent Civil Service Commission of the County of Los Angeles ("Respondent") directing it to set aside the decision to suspend her, for five days, from her position as a Detention Services Officer ("DSO") with the Los Angeles County ("County") Department of Probation ("Department") (collectively, "RPI").

The petition for writ of mandate is denied.

I.

Factual Background

On January 23, 2019, Petitioner was on duty at Barry J. Nidorf Juvenile Hall ("BJNJH") on the day shift, from 6:00 a.m. to 2:00 p.m., assigned to Unit W-Side 2 ("Unit W2"). (AR 383, 393-94.) A minor (Jesus C.) was housed in Unit W2. (AR 357, 377-81, 396-97.)

While under Petitioner's supervision, Jesus C. was unruly and noncompliant. (AR 378-81.) Ultimately, Petitioner did not provide Jesus C. lunch and did not allow Jesus C. to leave his room for the remainder of her shift, including for a 90-minute period after

lunch during which the general practice in Unit W2 was to allow the minors to stay out of their rooms for dayroom and recreation activities. (AR 406-420.)

Additionally and separately

during the January 23, 2019 day shift, Petitioner engaged in horseplay [1]

with minors Juan O. and Tony B. (AR 368, 445-46, 452-53.) Later that day, Petitioner

was on PM shift duty at BJNJH from 2:00 p.m. to 10:00 p.m., assigned to the

Medical Unit, and worked eight further hours after the conclusion of her day shift

in Unit W2. (AR 386.) Petitioner did not complete a Special Incident Report on

January 23, 2019.

On January 24, 2019, Jesus C. submitted

a grievance, stating Petitioner refused him lunch because she was upset and did

not allow him to eat lunch or use the restroom until the PM shift arrived. (AR

354.) The grievance was reported by Department Division IV Director Steven

Olsen the same day. (AR 344-60.) On January 25, 2019, Petitioner submitted a Special

Incident Report. (AR 377-81.) Petitioner did not document that she modified Jesus

C.'s program in the Unit Log Book. (AR 387.)

On February 23, 2019, Petitioner

was on duty at BJNJH on the PM shift, from 2:00 p.m. to 10:00 p.m., assigned to

Unit W, Side 1 ("Unit W1"). (AR 660-63, 668, 683, 686, 705.) Minor Carl T. was

assigned as Petitioner's assistant and was under her direct supervision. (AR 705-06.)

At about 8:00 p.m., Petitioner informed the minors that dayroom activities were over, instructing them to return to their rooms. (AR 660-63.) As Petitioner's assistant, Carl T. was supposed to help Petitioner get the minors to their rooms and prepare for showers, but instead he began using the pay phone. (AR 660-63, 683.) Petitioner directed Carl T. to get off the phone, and when he did not, Petitioner "fired" him, directing him to return to his room and prepare for showers. (AR 705.) Carl T. again refused. (AR 708.) After repeated noncompliance, Petitioner physically struggled with Carl T., then took the phone away. (AR 683, 708-10.) Petitioner denied that this was a use of force, calling it, "for lack of a better word – horseplay." (AR 710.) In response to this encounter, Petitioner searched Carl T.'s room and property and confiscated Carl T.'s shampoo. (AR 660, 683, 711-13.)

On February 26, 2020, the Department notified Petitioner that, effective March 9, 2020 through March 18, 2020, she would be suspended for ten days without pay based on the above-described incidents. (AR 3.) The suspension was based on abusive institutional practices, carelessness or inattention to duties, failure to follow established rules and regulations, and failure to exercise sound judgment. (AR 4.) Specifically, the suspension was based on violation of Probation Department Policy Manual ("PDPM") No. 102, Employee Orientation – Mission,

Vision, and Core Values; PDPM No. 601, Employee Conduct – Introduction; PDPM

No. 701, Discipline and Corrective Action – Introduction; PDPM 704, Discipline

and Corrective Action – Letter of Suspension; PDPM No. 707, Discipline and

Corrective Action – Letters of Intent and Skelly Meetings; Probation Department

Detention Services Bureau Manual (“DSBM”) No. 210, Duty Statement, Detention

Services Officer (DSO); DSBM No. 502, Daily Unit Operations, Daily Schedule; DSBM

No. 519, Temporary Suspension of Rights; DSBM No. 607, Modified Program; DSBM

No. 2322 – Horseplay; Probation Department Directive No. 1198 – Abusive

Institutional Practices; Employee Handbook, Ethical and Moral Standards, C 6-7;

and Los Angeles County Civil Service Rule 18.031. (AR 4-5; 133-34.)

Petitioner appealed her

suspension. (AR 17-23.) On May 13, 2020, Respondent granted a hearing on Petitioner’s

appeal. (AR 68.) On July 8, 2022, Respondent notified Petitioner that her

appeal would be heard on August 29, 30, and 31, 2022 by Hearing Officer

Jennifer Gardner (“Hearing Officer”). (AR 71.) On December 7, 2022, Respondent

notified Petitioner the hearing was continued to January 24 and 26, 2023. (AR

76.)

The Hearing Officer heard

Petitioner’s appeal on January 24 and 26, 2023. (AR 132.) The Hearing Officer

ultimately concluded that Petitioner’s actions were reasonable and within

policy, except in that she failed to document the incidents. (AR 147-49.) The

Hearing Officer recommended a reduced penalty of a letter of warning. (AR

149-150.)

On September 6, 2023, Respondent

announced its proposed decision to accept the Hearing Officer's findings and

recommendation. (AR 154.) The Department objected to the proposed decision. On

March 13, 2024, Respondent sustained the Department's objection in part and

rejected the Hearing Officer's recommendation to impose a letter of warning and

announced a new proposed decision to impose a five-day suspension. (AR 160.) On

August 7, 2024, Respondent issued Revised Conclusions of Law finding that

Petitioner engaged in horseplay. (AR 158-59.) Petitioner objected. On March 5,

2025, Respondent considered and overruled Petitioner's objections, and then

approved its findings adopting its proposed decision as its final decision. (AR

182.)

II.

Procedural History

On May 23, 2025, Petitioner filed her verified petition.

Proofs of service filed June 30, 2025 show Petitioner served Respondent and RPI

each with the petition by personal service on June 4, 2025. On July 7, 2025,

RPI filed its answer to the petition. On September 19, 2025, Respondent filed a

notice of no beneficial interest in outcome.

On April 22, 2026, Petitioner filed her opening brief. On May

22, 2026, RPI filed its opposition. On June 8, 2026, Petitioner filed her reply.

On June 8, 2026, Petitioner filed a notice of lodging for the trial

notebook and joint appendix, in accordance with the Court's orders.

III.

Standard of Review

Code of Civil Procedure ("CCP") section 1094.5 is the

administrative mandamus provision that structures the procedure for judicial

review of adjudicatory decisions rendered by administrative agencies. (Topanga

Ass'n for a Scenic Community v. County of Los Angeles (1974) 11 Cal.3d 506,

514-15 ["Topanga"].) Section 1094.5 does not specify which cases are

subject to independent review, leaving that issue to the courts. (Fukuda v.

City of Angels (1999) 20 Cal.4th 805, 811 ["Fukuda"]). In cases

reviewing decisions that affect a vested, fundamental right, the trial court

exercises independent judgment on the evidence. (Bixby v. Pierno (1971)

4 Cal.3d 130, 143 ["Bixby"]; see CCP § 1094.5(c).)

The Court uses its independent judgment on matters affecting a

public employee's vested property interest in his or her employment. (Barber

v. Long Beach Civil Service Comm'n (1996) 45 Cal.App.4th 652, 658.)

“In exercising its independent judgment, a trial court must

afford a strong presumption of correctness concerning the administrative

findings, and the party challenging the administrative decision bears the

burden of convincing the court that the administrative findings are contrary to

the weight of the evidence.” (Fukuda, *supra*, 20 Cal.4th at 817.)

Unless it can be demonstrated by petitioner that the agency’s actions are not

grounded upon any reasonable basis in law or any substantial basis in fact, the

courts should not interfere with the agency’s discretion or substitute their

wisdom for that of the agency. (Bixby, *supra*, 4 Cal.3d at 150-151;

Bank of America v. State Water Resources Control Board (1974) 42 Cal.

App.3d 198, 208.)

An agency is presumed to have

regularly performed its official duties (Evid. Code § 664), and the petitioner

therefore has the burden of proof on mandamus. (Steele v. Los Angeles County

Civil Service Commission (1958) 166 Cal.App.2d 129, 137.) “[T]he burden of

proof falls upon the party attacking the administrative decision to demonstrate

wherein the proceedings were unfair, in excess of jurisdiction or showed

prejudicial abuse of discretion.” (Alford v. Pierno, (1972) 27

Cal.App.3d 682, 691 [“Alford”].)

“The propriety of a penalty

imposed by an administrative agency is a matter vested in the discretion of the agency, and its decision may not be disturbed unless there has been a manifest abuse of discretion.” (Williamson v. Board of Medical Quality Assurance (1990) 217 Cal.App.3d 1343, 1347.)

IV.

Request for Judicial Notice

Petitioner seeks judicial notice

of County of Los Angeles Civil Service Commission Rule 4.10 (“Rule 4.10”) (RJN

Ex. A). The request is granted. (Evid. Code § 452(c).)

V.

Analysis

Petitioner seeks an order setting aside Respondent’s decision

to suspend her for five days. Petitioner argues that (1) the findings were not

supported by the evidence because Respondent relied on hearsay; (2) the decision

that Petitioner violated policy and accepted practice was contrary to the findings;

and (3) the five-day suspension imposed was a manifest abuse of discretion.

1.

The Findings Were Supported by the Evidence

Petitioner argues that the

findings were not supported by the evidence because Respondent’s findings were

based entirely on video footage and the investigator's interpretation of same.

Under Rule 4.10, Respondent's

hearings "need not be conducted according to technical rules relating to

evidence and witness." (Rule 4.10A.) "Any relevant evidence shall be admitted

if it is the sort of evidence on which responsible persons are accustomed to

rely in the conduct of serious affairs, regardless of the existence of any

common law or statutory rule which might make improper the admission of such

evidence or objection in civil actions." (Ibid.) While hearsay may be

admitted, hearsay alone cannot support a finding unless it would be admissible over

objection in a civil action. (Rule 4.10B.)

As RPI argues (Op. at 18), a

video is generally not considered hearsay, as it is not a statement made by a

person. (People v. Goldsmith (2014) 59 Cal.4th 258, 274 [Evidence Code

section 1200 defines hearsay as a "statement," further defined as an oral or written verbal expression or nonverbal conduct of a person intended by

them as a substitute for said expression; photos and video were not statements

of a person within that definition]; see also People v. Lopez (2012)

55 Cal.4th 569, 583 [machine readouts or machine-generated results are not testimonial

out of court statements].)

Petitioner's argument in reply, that

the complexity of the video and its need for interpretation makes the video an

out of court statement, in provided without any legal authority and is incorrect. (Reply at 3-4.) The video is not a testimonial account of what occurred. It is evidence of what occurred. (People v. Goldsmith (2014) 59 Cal.4th 258, 274; see People v. Lopez 55 Cal.4th 569, 583.)

Even assuming *arguendo*

that the investigator's characterizations of the video could somehow be considered hearsay, the Commission did not rely on those characterizations as the sole basis for its findings. Rule 4.10(B) prohibits reliance on hearsay alone, but the record contains ample non-hearsay evidence, including the video itself, Petitioner's own admissions regarding both the horseplay incidents (AR 446, 710) and the failure to document (AR 434, 469), and the grievance submitted by Jesus C. (AR 354). Because the Commission relied on non-hearsay evidence sufficient to support its findings, Rule 4.10(B) is satisfied.

Accordingly, the findings were

supported by the weight of the evidence.

2.

The Decision Was Supported by the Findings

Petitioner also argues Respondent's decision was not supported by the findings. (Pet. Op. Br. 5-10.) Petitioner does not contest the

conclusions that she failed to document appropriately. She likewise does not address the conclusion that she did not obtain approval from her supervisor when she kept Jesus C. in his room. (See generally Pet. Op. Br.) The only other conclusion against her was that she engaged in horseplay. (AR 158-59, 182.)[2]

Although Petitioner argues that the findings do not identify violations of the various Department policies listed in the original Letter of Suspension, Respondent's decision rests on two categories of misconduct that the Hearing Officer's findings of fact plainly establish. First, the Hearing Officer found that Petitioner failed to complete a Special Incident Report and failed to document her modification of Minor Jesus C.'s program in the Unit Log Book in connection with the January 23 incident (finding of fact no. 12; AR 145), and that she again failed to document the February 23 incident involving Minor Carl T. (finding of fact no. 23; AR 147). Second, the Hearing Officer found that Petitioner engaged in horseplay with minors, including swing-punching Minor Juan O. on January 23 (finding of fact no. 13; AR 146), and that Petitioner acknowledged that she sometimes engages in horseplay as a means of building rapport (finding of fact no. 15; AR 146). Petitioner does not dispute these factual findings, and they are sufficient to support Respondent's Revised Conclusions of Law that she violated Department policies governing

documentation and prohibiting horseplay (AR 158-59).

Petitioner contends that the

Hearing Officer's conclusion that Petitioner used horseplay to avoid the need

for a use of force was supported by the evidence and findings. On this basis,

the Hearing Officer determined that Petitioner did not violate DSBM No. 2322. However,

the agency decision under review in this matter is Respondent's, not the

Hearing Officer's recommendation. That the Hearing Officer concluded

differently only reflects that reasonable minds may differ. Respondent's

Revised Conclusions of Law (AR 158-59) cite the specific findings of fact on

which discipline rests, which is sufficient to satisfy Topanga's

requirement that an agency provide a reasoned connection between the evidence,

the findings, and the ultimate decision.

"In exercising its independent

judgment, a trial court must afford a strong presumption of correctness

concerning the administrative findings, and the party challenging the

administrative decision bears the burden of convincing the court that the

administrative findings are contrary to the weight of the evidence." (Fukuda,

supra, 20 Cal.4th at 817.) Unless it can be demonstrated by petitioner

that the agency's actions are not grounded upon any reasonable basis in law or

any substantial basis in fact, the courts should not interfere with the

agency's discretion or substitute their wisdom for that of the agency. (Bixby,

supra, 4 Cal.3d at 150-151; Bank of America v. State Water Resources

Control Board (1974) 42 Cal. App.3d 198, 208.)

Neither party provided the

language of DSBM No. 2322 that addresses horseplay. However, it is Petitioner's

burden to establish that Respondent abused its discretion in finding that she

violated DSBM No. 2322. (Alford, supra, 27 Cal.App.3d at 691 [petitioner

bears the burden to show unfairness, excess of jurisdiction, or prejudicial

abuse of discretion, and must provide an adequate administrative record or else

the presumption of regularity controls].) RPI asserts, and the record reflects,

that DSBM No. 2322 "strictly forbids horseplay between probation staff and

youth." (Opp. at 16; AR 1023.)(3]

Petitioner does not contest this. (See generally Pet. Op. Br.)

Even the Hearing Officer found Petitioner

did not "initiate horseplay" but "tolerate[d] it and mitigated[d] it without

unnecessary escalation." (AR 147.) The Hearing Officer found, as finding of

fact number 13, that "[o]n January 23, 2019, [Petitioner] engaged in horseplay with

[Jose O.] during which she pretended to swing-punch him without making

contact." (AR 146.) As part of finding of fact number 15, the Hearing Officer

found, "[Petitioner] also stated that sometimes she engages in horseplay as a

means of building rapport.” Petitioner herself referred to her conduct as

“horseplay” in an interview with the investigator. (AR 446, 710.)

Accordingly, Petitioner has not

met her burden to show the findings do not support the conclusion that

Petitioner violated DSBM No. 2322.

3.

The Five-Day Suspension Penalty Was Not an Abuse

of Discretion

Petitioner contends that Respondent

abused its discretion by imposing a five-day suspension. Specifically,

Petitioner notes that the Hearing Officer and Respondent each found that Petitioner

performed her duties well in the face of a minor engaged in threatening

behavior and engaged in proper actions with the other minors. Petitioner also

contends that her employment record shows she was not likely to engage in

abusive action and provides substantial mitigation. She has positive

performance evaluations and only one disciplinary action, which was a warning.

Based on this, she notes, the Hearing Officer determined a suspension was

inappropriate. Therefore, Petitioner concludes, the record does not support a

five-day suspension. (Pet. Op. Br. 10-11.)

The propriety of a penalty

imposed by an administrative agency is a matter in the discretion of the agency, and its decision may not be disturbed unless there has been a manifest abuse of discretion. (Lake v. Civil Service Commission (1975) 47

Cal.App.3d 224, 228 ["Lake"].) In determining whether there has been an abuse of discretion, the court must examine the extent of the harm to the public service, the circumstances surrounding the misconduct, and the likelihood that such conduct will recur. (Skelly, supra, 15

Cal.3d at 217-18.) Neither an appellate court nor a trial court is free to substitute its discretion for that of the administrative agency concerning the degree of punishment imposed. (Nightingale v. State Personnel Board (1972) 7 Cal.3d 507, 515.)

RPI argues that Respondent based its decision on the failure to document and Petitioner's own admissions of engaging in horseplay; RPI notes that a 5-day suspension is within the Supplemental Disciplinary Guidelines for this type of misconduct. (Opp. at 19.)

In reply, Petitioner reiterates that the Hearing Officer's conclusion reaching a different decision and penalty was supported by the evidence and findings, and Respondent failed to "distinguish the underlying bases for their revised conclusion of a 5-day suspension."

(Reply at 4.)

As noted above, this Court is reviewing Respondent's final decision, not the Hearing Officer's decision. An agency may adopt all factual findings made by a hearing officer and nonetheless determine that a different level of discipline is appropriate, so long as the penalty selected is reasonably supported by those findings and consistent with applicable guidelines. Respondent was therefore not required to modify the findings of fact, or to identify new factual bases, before concluding that the admitted violations (horseplay with minors and repeated failures to document significant incidents (AR 158-59)) warranted a five-day suspension.

As RPI notes (Opp. at 18) and Petitioner does not contest, Respondent was not bound by the Hearing Officer's findings or conclusions. While the parties do not point the Court to the relevant disciplinary guidelines, RPI contends, and Petitioner does not dispute, that a five-day suspension is within those guidelines. (Opp. at 19.)

Based on the foregoing, the Court cannot conclude that no reasonable person could have imposed a five-day suspension for the conduct at issue.

The Commission could also reasonably conclude that Petitioner's conduct presented significant risks to the safety and orderly operation of a juvenile detention facility.

Documentation failures can compromise supervisory review, impede incident

tracking, and obscure the sequence of events in volatile environments.

Likewise, the Department's prohibition on horseplay rests on undisputed

testimony that such conduct blurs professional boundaries, can rapidly

escalate, and may prompt intervention by other staff under the mistaken belief

that a use of force incident is happening. (AR 1023.) Given the potential

consequences, a five-day suspension for repeated violations in both categories

falls within the bounds of reason.

Accordingly, Petitioner has not

met her burden to show that a five-day suspension penalty was an abuse of

discretion.

VI.

Conclusion

The weight of the record evidence

supports Respondent's findings, and its findings support its conclusions, and

Petitioner has not shown the penalty imposed was an abuse of discretion. The

petition for administrative mandamus is DENIED.

Date:

June 23, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of

the matter without leave.

[1]

Horseplay is a category of interaction governed by Probation Department

Detention Services Bureau Manual Policy No. 2322. The parties do not provide

the policy or a definition of horseplay, but both Petitioner and RPI describe

Petitioner's conduct as horseplay.

[2]

Although the Department originally charged Petitioner with violating DSBM Nos.

519 and 607 (modified program), Respondent's Revised Conclusions of Law (AR 158-59)

do not rely on those provisions, and Petitioner challenges no finding that

would undermine the two categories of misconduct on which Respondent actually

based its decision.

[3]

Senior Probation Director Jocelyn Roman testified that "policy strictly

prohibits horseplay between probation staff and youths," because "[i]t blurs

the lines. [Staff] are supposed to behave in a professional manner...[i]t can get

out of control and can be misperceived by people who don't know that it's

horseplay. But, overall, we try to keep boundaries with our youth, and

sometimes when you blur them, they don't know what's okay and what's not okay

and staff don't know what's okay and what's not okay. And an unintended

consequence is that somebody could respond thinking that there is an assault

and somebody could get hurt in that response..." (AR 1023.)